

02:00 PM

25-CIV-03629 RICHARD FRESCHET VS. ALAN LIM, ET AL.

LINE 3

RICHARD FRESCHET
ALAN LIM

BRIAN J. MCSWEENEY
GEOFFREY W. STEELE

PLAINTIFF: RICHARD FRESCHET'S MOTION FOR ORDER ESTABLISHING ADMISSIONS BY DEFENDANTS: RX SOLAR INC. AND ALAN LIM AND FOR MONETARY SANCTIONS OF \$3,560

TENTATIVE RULING:

The court will exercise its discretion to consider the new evidence provided with the Supplemental Declaration of Ira Leshin. However, the motion is continued to September 14, 2026, so that defendant may review the evidence.

02:00 PM

25-CIV-06649 DOROTHY CARONNA VS. META PLATFORMS, INC.

LINE 4

DOROTHY CARONNA
META PLATFORMS, INC.

PRO PER
MICHELLE VISSER

DEFENDANT: META PLATFORMS, INC.'S DEMURRER TO AMENDED COMPLAINT

TENTATIVE RULING:

Defendant Meta Platforms, Inc.'s demurrer to Plaintiff's First Amended Complaint ("FAC") filed on October 31, 2025, for failure to state sufficient facts upon to constitute a cause of action pursuant to Code of Civil Procedure section 430.10, subdivision (e), is SUSTAINED WITHOUT LEAVE TO AMEND.

Initially, the court notes that defendant provided the improper address for the hearing because the matter was most recently reassigned on April 30, 2026, to the Honorable David A. Silberman, Department 11, effective May 11, 2026. Department 11 is located at the San Mateo Superior Court Central Branch Courthouse, Courtroom G, 800 North Humboldt Street, San Mateo, CA 94401. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].) Because the matter has been reassigned three times in the less than one year since its inception, the Court finds the error understandable but notes the error for parties' clarification regarding hearing location and judicial officer. It is also of note that Defendant included the correct judge on the face of its reply but the wrong Department number.

Plaintiff is a former paying customer of Meta Platform services and alleges she was banned from the platform on June 2, 2025, for her alleged breach of terms of service. However, after she was banned, she continued to be billed in July, August, September and December 2025 for business ads. The FAC raises a cause of action for general negligence because Defendant Meta owed plaintiff a duty to stop charging her for services she was never going to get after being banned from their platform.

Defendant filed a demurred to the FAC on the grounds that it fails to state facts sufficient to constitute a cause of action pursuant to Code of Civil Procedure section 430.10 subdivision (e) because the cause of action fails to state a duty of care for a negligence claim and, additionally, the economic loss rule precludes this claim. Plaintiff opposes and contends that she is unable to file this action under breach of contract because she has been banned from accessing her account information.

"[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation]." (*John's Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013.) The "demurrer tests the sufficiency of the plaintiff's complaint, *i.e.*, whether it states facts sufficient to constitute a cause of action upon which relief may be based." (*Villarroel v. Recology, Inc.* (2023) 97 Cal.App.5th 762, 772.) Thus, a court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*Id.* at 1008), but does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.)
